ELEPHANT FOOT

Website Services Agreement

Draft template - complete all blanks and obtain legal review before use. Proposed terms require both parties agreement; this is not legal advice.

Parties and project

Effective date: _____
Provider legal name: _____, doing business as Elephant Foot.
Provider address/email: _____
Client legal name: _____
Client business/contact/address/email: _____
Project name and domain: _____
Elephant Foot is a service brand; the Provider legal name above identifies the contracting person or entity.

1. Included services

$299 USD one-time fixed-price website package: custom design around Client-approved content; up to five agreed pages; responsive layouts for phone, tablet and desktop; a contact form connected to the Client inbox; basic SEO, a sitemap and analytics setup; deployment on the Client domain; and source-code delivery. Basic SEO includes page titles, descriptions and sensible headings, not an ongoing SEO campaign. No traffic, sales or search-ranking results are guaranteed.
Agreed pages: _____
Contact-form destination: _____
Analytics tool/account: _____

2. Scope, exclusions and third-party costs

Apps, website rebuilds and ongoing work require separate quotes. Unless expressly included in a signed scope amendment, this package excludes custom backends, ecommerce, payment processing, account systems, integrated booking systems, copywriting, branding, legal-policy drafting and ongoing maintenance. Linking to an existing service may be included only if agreed. Domain registration, hosting and paid third-party services are not part of the $299 fee unless listed below. No additional fee or subscription will be incurred on Client behalf without written approval.
Approved costs, payer and renewal responsibility: _____

3. Client materials and responsibilities

Client supplies accurate, final text, images, logos, links and business information and confirms permission to use supplied materials. Client approves published claims, testimonials and content. Client provides necessary access through secure invitations where available, not passwords in an inquiry form. Client handles applicable business-specific legal requirements and supplies necessary privacy, cookie or other policy text. Provider will identify the intended analytics and contact-form tools before launch and implement agreed settings. Legal compliance services are not included.

4. Schedule and revisions

Typical delivery is 1-2 weeks after signature, receipt of required content and access, and scope confirmation; this is an estimate, not a guaranteed deadline. Client delays, requested changes and third-party outages may change the schedule. Provider will communicate material delays.

Included consolidated revision rounds: _____ (complete before signing).
Revisions must remain within agreed scope. Provider corrections needed to meet that scope do not consume revision rounds. Additional work requires Client written approval of price and timing before it starts.

5. Review, approval and payment

No deposit or upfront payment is required. Provider supplies a functioning preview of the completed agreed website so Client can review it before paying. Within seven calendar days of receiving the preview, Client will approve it in writing or identify specific unmet scope requirements. Provider will correct those requirements and resubmit for review. Silence is not approval. After written approval of the completed build, Provider invoices $299 plus only separately approved charges. Payment is due within seven calendar days of the invoice. Public launch and source-code handoff occur after cleared payment unless both parties agree otherwise in writing. Preview access is for review only; Client may not publish or reuse unpaid Provider deliverables.

6. Launch and handoff

Following approval, payment and necessary domain/hosting access, Provider deploys the site on the agreed Client domain, tests the contact form and supplies the source code and basic handoff instructions. Client should own domain, hosting and analytics accounts where practical. Provider will not retain unnecessary access or withhold Client-owned credentials or supplied assets. Hosting uptime, email delivery and third-party platforms are outside Provider direct control.

7. Ownership and licenses

Upon full payment, Provider assigns to Client Provider-owned rights in original project-specific design and code created for this project. Client retains ownership of Client-supplied materials. Provider retains pre-existing tools, reusable components and general know-how and grants Client a perpetual, worldwide, nonexclusive license to use, modify and distribute any such materials incorporated into the paid website as part of that website. Third-party and open-source materials remain subject to their licenses; source-code delivery does not transfer third-party ownership. Portfolio use requires the separate permission below.

8. Post-launch corrections and maintenance

For 14 calendar days after launch, Provider will correct reported reproducible defects that prevent the delivered site from meeting the signed scope, without additional charge. New features, content changes, third-party changes and issues caused by Client or another provider are excluded. This does not waive rights that cannot lawfully be waived. Ongoing maintenance, backups, updates and support require a separate agreement.

9. Cancellation and inactivity

Either party may cancel by written notice. For this standard package, cancellation before written approval of the completed build carries no cancellation fee; unpaid Provider work may not be used. If Client cancels after written approval, the approved build fee remains due and Provider will offer source-code delivery after payment; public deployment may be waived. Separately approved work and nonrefundable third-party expenses are governed by their written approval. If Client is unresponsive for 14 days, Provider may pause the project after notice. After 30 further days without response, Provider may close it with written notice. Inactivity alone does not create approval or an obligation to pay the standard build fee.

10. Confidentiality and responsibility

Each party will protect nonpublic information received from the other and use it only for this project, except as required by law or already public. Provider will perform services with reasonable care. To the extent permitted by law, neither party is liable for indirect or consequential losses. Provider aggregate liability for this agreement will not exceed the project fees paid or payable. These limitations do not apply to fraud, willful misconduct, gross negligence, confidentiality breaches, infringement of the other party intellectual property, or liability that cannot lawfully be limited. Client payment obligations remain unaffected.

11. Disputes and governing law

The parties will first attempt good-faith resolution by written notice describing the issue and requested remedy. This agreement is governed by Minnesota law, excluding conflict-of-law rules, subject to mandatory laws that apply. No mandatory arbitration is imposed. Either party may use a court with proper jurisdiction if informal resolution fails.

12. Agreement and electronic signatures

This signed agreement and its attached scope replace prior discussions about this project. Changes must be accepted in writing by both parties, including clearly agreed email amendments. If marketing language differs from these terms, resolve the difference and correct the written documents before signature. Both parties consent to signing and retaining this agreement electronically; each will receive a complete signed copy. Each signer represents authority to bind the named party.

Optional portfolio permission

Select one: [ ] Client permits Elephant Foot to display the public website, Client business name and screenshots in its portfolio after launch. [ ] No portfolio permission. This permission does not include private data or imply Client endorsement.

Signatures

Client legal name: _____
Authorized signer name/title: _____
Client signature: _____ Date: _____

Provider legal name: _____
Provider signer name/title: _____
Provider signature: _____ Date: _____